

HOUSE BILL No. 1235

DIGEST OF INTRODUCED BILL

Citations Affected: IC 4-30-3-20; IC 4-32.3-1-1; IC 4-39.5; IC 6-8.1-1-1; IC 35-45-5-15.5; IC 35-52-4.

Synopsis: Video gaming terminals. Authorizes wagering on video gaming terminals in certain establishments. Establishes a licensing structure for participants in video gaming. Imposes a video gaming wagering tax of 30% of adjusted gross receipts.

Effective: July 1, 2026.

Judy

January 5, 2026, read first time and referred to Committee on Public Policy.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1235

A BILL FOR AN ACT to amend the Indiana Code concerning gaming.

Be it enacted by the General Assembly of the State of Indiana:

SECTION 1. IC 4-30-3-20, AS AMENDED BY P.L.152-2025, SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 20. (a) This section does not apply to:

(1) an activity specifically authorized by:

(A) IC 4-29 or IC 4-29.5 (tribal gaming and tribal-state compact);

(B) IC 4-31 (pari-mutuel wagering on horse races);

(C) IC 4-33 (riverboat gambling);

(D) IC 4-35 (gambling games at racetracks); ~~or~~

(E) IC 4-38 (sports wagering); **or**

(F) IC 4-39.5 (video gaming);

(2) the purchase of a tangible lottery ticket for a lottery game from:

(A) a retailer authorized to sell lottery tickets under IC 4-30-9;

or

(B) the commission; or

(3) a free:



- 1 (A) interactive game; or
- 2 (B) promotional game;
- 3 offered by the commission.
- 4 (b) Unless specifically granted authority by a statute passed by the
- 5 general assembly, the commission and Indiana gaming commission
- 6 shall not, independently or by public-private partnership, operate or
- 7 authorize the use or operation of the following:
- 8 (1) A lottery game operated through a video lottery terminal.
- 9 (2) A video gaming terminal.
- 10 (3) A lottery courier service.
- 11 (4) The sale of digital representations of:
- 12 (A) casino-style games, including:
- 13 (i) poker;
- 14 (ii) roulette;
- 15 (iii) slot machines; or
- 16 (iv) blackjack;
- 17 over the Internet;
- 18 (B) scratch-off games; or
- 19 (C) draw games.
- 20 SECTION 2. IC 4-32.3-1-1, AS ADDED BY P.L.58-2019,
- 21 SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
- 22 JULY 1, 2026]: Sec. 1. (a) This article applies only to a qualified
- 23 organization.
- 24 (b) This article applies only to the following approved gambling
- 25 activities conducted as fundraising activities by qualified organizations:
- 26 (1) Bingo events, casino game nights, raffles, festivals, and other
- 27 gaming activities approved by the commission.
- 28 (2) The sale of pull tabs, punchboards, and tip boards:
- 29 (A) at bingo events, casino game nights, raffles, and festivals
- 30 conducted by qualified organizations; or
- 31 (B) at any time on the premises owned or leased by qualified
- 32 organizations and regularly used for the activities of qualified
- 33 organizations.
- 34 This article does not apply to any other sale of pull tabs,
- 35 punchboards, and tip boards.
- 36 (c) This article does not apply to a promotion offer subject to
- 37 IC 24-8.
- 38 (d) This article does not apply to the following:
- 39 (1) A type II gambling game authorized by IC 4-36.
- 40 (2) A raffle or other gambling game authorized by IC 4-36-5-1(b).
- 41 **(3) Video gaming authorized by IC 4-39.5.**
- 42 (e) This article does not apply to a prize linked savings program



that:

(1) is offered or conducted by an eligible financial institution under IC 28-1-23.2;

(2) is:

(A) offered or conducted by a credit union organized or reorganized under United States law; and

(B) conducted in the same manner as a prize linked savings program under IC 28-1-23.2; or

(3) is:

(A) offered or conducted by an insured depository institution (as defined in 12 U.S.C. 1813) that is:

(i) a national bank formed under 12 U.S.C. 21;

(ii) a state member bank (as defined in 12 U.S.C. 1813);

(iii) a state nonmember bank (as defined in 12 U.S.C. 1813);

or

(iv) a savings association (as defined in 12 U.S.C. 1813);

and

(B) conducted in the same manner as a prize linked savings program under IC 28-1-23.2.

SECTION 3. IC 4-39.5 IS ADDED TO THE INDIANA CODE AS A NEW ARTICLE TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]:

ARTICLE 39.5. VIDEO GAMING TERMINALS IN ESTABLISHMENTS

Chapter 1. General Provisions

Sec. 1. This article applies only to wagering on video gaming terminals located in licensed establishments under a video gaming terminal installation contract described in IC 4-39.5-8.

Sec. 2. All shipments of video gaming terminals to a manufacturer, distributor, supplier, operator, or establishment in Indiana, the registering, recording, and labeling of which have been completed by the manufacturer or dealer in accordance with 15 U.S.C. 1171 through 15 U.S.C. 1178, are legal shipments of gambling devices into Indiana.

Sec. 3. Under 15 U.S.C. 1172, approved January 2, 1951, the state of Indiana, acting by and through elected and qualified members of the general assembly, declares that the state is exempt from 15 U.S.C. 1172.

Sec. 4. (a) This section does not apply to real or personal property taxes imposed by a local taxing unit.

(b) Except as provided in subsection (e), local governmental authority concerning all matters relating to video gaming



1 conducted under this article is preempted by the state.

2 (c) No tax or fee, except as provided in this article, may be
3 assessed or collected from a licensee by a political subdivision
4 having the power to assess or collect a tax or fee. This section does
5 not prohibit the assessment and levying of property taxes otherwise
6 authorized by law or the imposing of a special assessment
7 (including a ditch or drainage assessment, Barrett Law assessment,
8 improvement assessment, sewer assessment, or sewage assessment)
9 otherwise authorized by law to be imposed on property to be
10 benefited by an improvement.

11 (d) A political subdivision may not enter into an agreement with
12 a licensee that requires any financial commitments from the
13 licensee that are in addition to the fees and taxes imposed under
14 this article.

15 (e) An ordinance prohibiting video gaming in existence on June
16 30, 2026, is preempted by this article. However, the legislative body
17 of:

18 (1) a city or town may pass an ordinance to prohibit video
19 gaming within the corporate limits of the city or town; or

20 (2) a county may pass an ordinance to prohibit video gaming
21 in the unincorporated area of the county;

22 after June 30, 2026.

23 Sec. 5. This article will maintain the public's confidence and
24 trust through:

25 (1) comprehensive law enforcement supervision; and

26 (2) the strict regulation of facilities, persons, associations, and
27 video gaming at establishments.

28 Chapter 2. Definitions

29 Sec. 1. The definitions in this chapter apply throughout this
30 article.

31 Sec. 2. "Adjusted gross receipts" means the difference between:

32 (1) a person's gross receipts; minus

33 (2) prizes paid out to patrons by the person.

34 Sec. 3. "Commission" refers to the Indiana gaming commission
35 established by IC 4-33-3-1.

36 Sec. 4. "Convenience store" refers to a store or food mart that
37 is primarily engaged in:

38 (1) the retail sale of a line of goods that may include milk,
39 bread, soda, and snacks; or

40 (2) the retail sale of automotive fuels and the retail sale of a
41 line of goods that may include milk, bread, soda, and snacks.

42 Sec. 5. "Department" refers to the department of state revenue.



1 **Sec. 6. "Distributor"** means a person licensed under this article
2 to:

- 3 (1) buy a video gaming terminal from a manufacturer; and
4 (2) sell, lease, or otherwise distribute a video gaming terminal
5 or major components or parts of a video gaming terminal to
6 an operator.

7 **Sec. 7. "Establishment"** means any of the following locations
8 licensed to have video gaming terminals on the premises:

- 9 (1) A veterans organization establishment.
10 (2) A fraternal organization establishment.
11 (3) Except as provided in IC 4-39.5-5-13(b)(5), an
12 establishment licensed under IC 7.1-3 to sell alcoholic
13 beverages to customers for consumption on the premises of
14 the establishment.
15 (4) A truck stop establishment.

16 **Sec. 8. "Fraternal organization establishment"** means an
17 organization or institution that:

- 18 (1) is organized and conducted on a nonprofit basis;
19 (2) is exempt from federal income taxation under Section
20 501(c) of the Internal Revenue Code;
21 (3) is a branch, lodge, or chapter of a national organization;
22 and
23 (4) exists for the common charitable purposes, brotherhood,
24 and other interests of its members.

25 **Sec. 9. "Gambling game"** means a game played on a video
26 gaming terminal approved for wagering under this article by the
27 commission.

28 **Sec. 10. "Gross receipts"** means the total amount of money
29 wagered, either by cash or ticket, by patrons on a video gaming
30 terminal in an establishment.

31 **Sec. 11. "Licensee"** means a person holding a license issued
32 under this article.

33 **Sec. 12. "Manufacturer"** means a person that is licensed under
34 this article to:

- 35 (1) manufacture or assemble video gaming terminals; and
36 (2) sell video gaming terminals to a distributor.

37 **Sec. 13. "Operator"** means a person that is licensed under this
38 article to own or lease, install, maintain, and operate video gaming
39 terminals at an establishment located in Indiana.

40 **Sec. 14. "Patron"** means an individual who wagers on gambling
41 games played on a video gaming terminal.

42 **Sec. 15. "Payment ticket"** means a ticket dispensed by a video



1 gaming terminal in exchange for credits accumulated on a video
2 gaming terminal.

3 Sec. 16. "Payout device" means a device that redeems a
4 payment ticket with cash.

5 Sec. 17. "Person" means an individual, a sole proprietorship, a
6 partnership, an association, a fiduciary, a corporation, a limited
7 liability company, or any other business entity.

8 Sec. 18. "Supplier" means a person that is licensed under this
9 article to supply major components or parts for video gaming
10 terminals and payout devices.

11 Sec. 19. "Truck stop establishment" means a premises that:

12 (1) is equipped with diesel islands designated for fueling
13 commercial motor vehicles (as defined in IC 9-13-2-31);

14 (2) has sold at retail on average more than fifty thousand
15 (50,000) gallons of diesel or biodiesel fuel each month over the
16 previous twelve (12) months, or, in the case of an
17 establishment that has been open for less than twelve (12)
18 months, is expected to average more than fifty thousand
19 (50,000) gallons in retail sales of diesel or biodiesel fuel each
20 month;

21 (3) has parking spaces designated for commercial motor
22 vehicles (as defined in IC 9-13-2-31); and

23 (4) has a convenience store.

24 Sec. 20. "Vendor" means a person that provides or proposes to
25 provide goods or services to the commission. The term does not
26 include an employee of the commission, a licensed establishment,
27 a licensee, or a state agency.

28 Sec. 21. "Veterans organization establishment" means an
29 organization or institution that is:

30 (1) organized and conducted on a nonprofit basis;

31 (2) exempt from federal income taxation under Section 501(c)
32 of the Internal Revenue Code; and

33 (3) a branch or chapter of a national veterans organization.

34 Sec. 22. "Video gaming terminal" means an electronic video
35 gaming machine that:

36 (1) is available for consideration in the form of cash or a ticket
37 to play or simulate the play of a gambling game, including
38 poker, line up, and blackjack, using a video display and
39 microprocessors; and

40 (2) awards winning players with free games or credits that
41 may be redeemed for cash.

42 The term does not include a machine that directly dispenses coins,



1 cash, or tokens or is for amusement purposes only.

2 Sec. 23. "Video gaming terminal installation contract" means
3 a contractual agreement between:

4 (1) an operator or a person eligible to apply for an operator's
5 license; and

6 (2) an establishment or a person eligible to apply for an
7 establishment license;

8 that sets forth the terms and conditions for the placement,
9 installation, and operation of video gaming terminals on the
10 premises of the establishment.

11 Chapter 3. Powers and Duties of the Indiana Gaming
12 Commission

13 Sec. 1. The commission has jurisdiction and supervision over the
14 following:

15 (1) All video gaming operations in Indiana.

16 (2) All patrons in establishments.

17 Sec. 2. (a) The commission has the following powers for the
18 purpose of administering, regulating, and enforcing the system of
19 video gaming established under this article:

20 (1) All powers and duties specified in this article.

21 (2) All powers necessary and proper to fully and effectively
22 execute this article.

23 (3) The power to conduct hearings and to issue subpoenas for
24 the attendance of witnesses and subpoenas duces tecum for
25 the production of books, records, and other relevant
26 documents.

27 (4) The power to administer oaths and affirmations to
28 witnesses.

29 (5) The power to revoke, suspend, or renew licenses issued
30 under this article.

31 (6) The power to hire employees, gather information, conduct
32 investigations, and carry out other tasks under this article.

33 (b) The commission has the following duties for the purpose of
34 administering, regulating, and enforcing the system of video
35 gaming established under this article:

36 (1) To investigate and reinvestigate applicants, vendors,
37 suppliers, establishments, and licensees.

38 (2) To take appropriate administrative enforcement or
39 disciplinary action against a person regulated under this
40 article.

41 (3) To investigate alleged violations of this article.

42 (4) To take any reasonable or appropriate action to enforce



1 this article.

2 Sec. 3. (a) The commission shall adopt rules under IC 4-22-2 for
3 the following purposes:

4 (1) Administering this article.

5 (2) Establishing the conditions under which video gaming in
6 Indiana may be conducted.

7 (3) Providing for the prevention of practices detrimental to
8 the public interest and providing for the best interests of video
9 gaming in Indiana.

10 (4) Imposing penalties for noncriminal violations of this
11 article.

12 (b) The commission shall adopt rules under IC 4-22-2 for the
13 purposes described in subsection (a) to enable video gaming in
14 Indiana to commence as soon as possible after June 30, 2026.

15 Sec. 4. The commission shall do the following:

16 (1) Conduct all hearings concerning civil violations of this
17 article.

18 (2) Levy and collect penalties for noncriminal violations of
19 this article.

20 (3) Deposit the penalties in the state general fund.

21 Sec. 5. The commission shall adopt standards for the licensing
22 of the following:

23 (1) Persons regulated under this article.

24 (2) Equipment necessary to conduct video gaming.

25 Sec. 6. The commission shall issue a request for proposals for a
26 central communications system vendor and enter into a contract
27 with a central communications system vendor.

28 Sec. 7. The commission shall issue a request for proposals for an
29 independent outside testing laboratory for the examination of video
30 gaming terminals and associated equipment as required by this
31 article. The commission shall enter into contracts with at least two
32 (2) independent outside testing laboratories.

33 Sec. 8. If a licensee or an employee of a licensee violates this
34 article or engages in a fraudulent act, the commission may do any
35 combination of the following:

36 (1) Suspend, revoke, or restrict the license of the licensee.

37 (2) Require the removal of the licensee or employee of a
38 licensee.

39 (3) Impose a civil penalty or fine upon the licensee or
40 employee.

41 Sec. 9. (a) The commission shall employ investigators.

42 (b) An investigator employed by the commission is vested with



1 full police powers and duties to enforce this article.

2 (c) An investigator may issue a summons for an infraction or a
3 misdemeanor violation if the defendant promises to appear by
4 signing the summons. A defendant who signs a summons issued
5 under this subsection but fails to appear is subject to the penalties
6 provided by IC 35-44.1-2-10. Upon the defendant's failure to
7 appear, the court shall issue a warrant for the arrest of the
8 defendant.

9 (d) In addition to the powers and duties vested under subsection
10 (b), an investigator may act as an officer for the arrest of offenders
11 who violate the laws of Indiana if the investigator reasonably
12 believes that a crime has been, is being, or is about to be committed
13 or attempted in the investigator's presence.

14 Sec. 10. The commission shall establish the minimum amount of
15 insurance that must be maintained by an operator or an
16 establishment.

17 Chapter 4. Applicant Information

18 Sec. 1. This chapter applies to an applicant for any of the
19 following:

- 20 (1) A manufacturer license.
- 21 (2) A distributor license.
- 22 (3) A supplier license.
- 23 (4) An operator license.
- 24 (5) An establishment license.

25 Sec. 2. (a) Except as provided in subsection (b), an applicant for
26 a manufacturer license, distributor license, supplier license,
27 operator license, or establishment license must provide the
28 following information:

- 29 (1) The name, business address, and business telephone
30 number of the applicant.
- 31 (2) The following information for an applicant that is not an
32 individual:
 - 33 (A) The state of the applicant's incorporation or
34 registration.
 - 35 (B) The names of all directors and officers.
- 36 (3) The identity of the following:
 - 37 (A) Any person in which the applicant has an equity
38 interest of at least one percent (1%) of all shares. The
39 identification must include the state of incorporation or
40 registration, if applicable. However, an applicant that has
41 a pending registration statement filed with the Securities
42 and Exchange Commission is not required to provide



information under this clause.

(B) The shareholders or participants in the applicant. An applicant whose interests are publicly traded is required to provide only the names of the persons holding an equity interest of more than five percent (5%).

(4) An identification of any business, including the state of incorporation or registration, if applicable, in which an applicant, the spouse of the applicant, or a child of the applicant has an equity interest of more than five percent (5%).

(5) If the applicant has been indicted or convicted, has pleaded guilty or nolo contendere, or has forfeited bail concerning a criminal offense under the laws of any jurisdiction, the applicant must include the following information:

(A) The name and location of the following:

(i) The court.

(ii) The arresting law enforcement agency.

(iii) The prosecuting attorney.

(B) The case number.

(C) The date and type of the criminal offense.

(D) The disposition of the case.

(E) The location and duration of any periods of incarceration served by the applicant.

(6) If the applicant has had a license or a certificate issued by a licensing authority in Indiana or any other jurisdiction denied, restricted, suspended, revoked, or not renewed, the applicant must provide the following information:

(A) A statement describing the facts and circumstances concerning the authority's actions concerning the applicant's license or certificate.

(B) The date of the authority's action concerning the applicant's license or certificate.

(C) The reason for the authority's action concerning the applicant's license or certificate.

(7) If the applicant:

(A) has filed or has had filed against the applicant a proceeding in bankruptcy; or

(B) has been involved in a formal process to adjust, defer, suspend, or work out the payment of a debt;

the applicant must provide the date of filing, the name and location of the court, the case number of the proceeding, and



the disposition of the proceeding.

(8) If the applicant has filed or been served with a complaint or notice filed with a public body concerning:

(A) a delinquency in the payment of; or

(B) a dispute over the filing of;

a return or the payment of a tax under federal, state, or local law, the applicant must include the amount of the disputed tax, the type of the disputed tax, the name of the taxing agency involved, and the time involved in the tax dispute.

(9) A statement listing the names and positions of public officials, public officers, and the relatives of public officials and public officers who directly or indirectly:

(A) have a financial interest in;

(B) have a beneficial interest in;

(C) are the creditors of;

(D) hold a debt instrument issued by; or

(E) have an interest in a contractual or service relationship with;

the applicant.

(10) Except as provided in subsection (b), if the applicant has directly or indirectly made a political contribution, loan, donation, or other payment to a candidate or an officeholder in Indiana in the five (5) years before the date of the application, the applicant must provide the amount and method of the payment.

(11) The name and business telephone number of the attorney who will represent the applicant in matters before the commission.

(12) A description of the product or service to be manufactured, distributed, or supplied by the applicant if the applicant is applying for a manufacturer, distributor, or supplier license.

(b) Subsection (a)(10) does not apply to an applicant for an establishment license.

Sec. 3. (a) The following information that may be submitted, collected, or gathered as part of an application for a license under this article is confidential for purposes of IC 5-14-3-4:

(1) Any information concerning a minor child of the applicant.

(2) The Social Security number of the applicant or the applicant's spouse.

(3) The home telephone number of the applicant, the



applicant's spouse, or the children of the applicant.

(4) The applicant's birth certificate.

(5) The driver's license number of the applicant or the applicant's spouse.

(6) The name or address of any former spouse of the applicant.

(7) The date of birth of the applicant's spouse.

(8) The place of birth of the applicant's spouse.

(9) The personal financial records of the applicant, the applicant's spouse, or a minor child of the applicant.

(10) Any information concerning the applicant being a victim of domestic violence, sexual assault, or stalking.

(11) The electronic mail address of the applicant, the spouse of an applicant, or a family member of an applicant.

(b) In addition to information that is confidential under subsection (a), all information maintained by the commission concerning an applicant who holds, has held, or has applied for a license under this article:

(1) is confidential for purposes of IC 5-14-3; and

(2) may be released by the commission only for law enforcement purposes or to a state agency.

Sec. 4. Notwithstanding any other law, the commission shall provide upon written request the following information:

(1) The information provided under section 2 of this chapter concerning a licensee or an applicant.

(2) The aggregate amount of tax paid to the state by all of the establishments located in each municipality or county.

(3) A copy of any documentation from the commission providing the reasons for the denial, revocation, suspension, or nonrenewal of a license.

(4) A copy of any documentation from the commission providing the reasons for the commission's refusal to allow an applicant to withdraw the applicant's application.

Chapter 5. Licensing of Persons

Sec. 1. (a) The commission may issue the following licenses under this chapter to qualified applicants:

(1) A manufacturer license.

(2) A distributor license.

(3) A supplier license.

(4) An operator license.

(5) An establishment license.

(b) To obtain a license, a person must submit an application



1 form, an application fee, and any information requested by the
2 commission under this article.

3 (c) The commission shall, promptly and in reasonable order,
4 approve or reject all license applications received under this
5 article.

6 Sec. 2. The burden is on each applicant to demonstrate the
7 applicant's suitability for a license issued under this article. The
8 commission may issue or deny a license as provided by this article.

9 Sec. 3. An applicant for a license under this article must submit
10 to a background investigation conducted by the commission with
11 the assistance of the state police department or another law
12 enforcement agency.

13 Sec. 4. A person may not be licensed under this article if any of
14 the following apply:

15 (1) The applicant has knowingly made a false statement of
16 material fact to the commission.

17 (2) The applicant is found by the commission to lack the
18 necessary financial stability or responsibility to hold an
19 establishment license issued under this article.

20 (3) The applicant, if an individual, is less than twenty-one (21)
21 years of age on the date on which the application is received
22 by the commission.

23 (4) The applicant is on the most recent tax warrant list.

24 (5) The applicant, if an individual, has been convicted of or
25 entered a plea of guilty or nolo contendere to a crime set forth
26 in IC 35-45-5 or a crime of moral turpitude.

27 (6) The applicant, if an individual, has been convicted of or
28 entered a plea of guilty or nolo contendere to a felony under
29 Indiana law, the laws of any other state, or the laws of the
30 United States within the ten (10) years preceding the date of
31 the license application.

32 (7) The applicant, if an individual, has been convicted of or
33 entered a plea of guilty or nolo contendere to a felony under
34 Indiana law, the laws of any other state, or the laws of the
35 United States more than ten (10) years preceding the date of
36 the license application, unless the commission determines
37 that:

38 (A) the individual has been pardoned or the individual's
39 civil rights have been restored;

40 (B) after the conviction or entry of the plea, the individual
41 has engaged in the kind of law abiding commerce and good
42 citizenship that would reflect well upon the integrity of the



commission; or

(C) the individual has terminated a relationship with a person whose actions directly contributed to the conviction or entry of the plea.

(8) The applicant fails to provide all materials requested by the commission.

(9) The applicant has a background, including a criminal record, reputation, habits, social or business associations, or prior activities, that poses a threat to the public interests of the state or to the security and integrity of video gaming.

(10) The applicant may create or enhance the dangers of unsuitable, unfair, or illegal practices, methods, and activities in the conduct of video gaming.

(11) The applicant presents questionable business practices and financial arrangements incidental to the conduct of video gaming operations.

Sec. 5. The fact that an applicant:

(1) has faced charges of a crime described in section 4(5) or 4(6) of this chapter that were ultimately dismissed; or

(2) has been charged with a crime described in section 4(5) or 4(6) of this chapter, but not convicted of the crime;

is not sufficient grounds to disqualify the applicant for a license under this article in the absence of other facts determined by the commission to support a finding of unsuitability under section 4(9) through 4(11) of this chapter.

Sec. 6. The costs of investigating an applicant for a license under this chapter must be paid from the initial license fee paid by the applicant under IC 4-39.5-13.

Sec. 7. The commission shall conduct or cause to be conducted a background investigation of each applicant for a license issued under this chapter.

Sec. 8. Criminal history record information obtained during the investigation of an individual must be maintained by the commission for the term of the license and for any subsequent license term.

Sec. 9. The commission may require that an application or other document submitted by an applicant or a licensee must be sworn to or affirmed before a notary public.

Sec. 10. An applicant must furnish all information requested by the commission, including financial data and documents, certifications, consents, waivers, and individual histories.

Sec. 11. (a) An initial license issued under this chapter is valid



1 for one (1) year. A person holding a manufacturer license, a
 2 distributor license, a supplier license, or an operator license may
 3 annually renew the license if:

4 (1) the commission determines that the person satisfies the
 5 conditions of this article; and

6 (2) the person pays the annual license renewal fee under
 7 IC 4-39.5-13.

8 (b) A person holding a manufacturer license, a distributor
 9 license, a supplier license, or an operator license is subject to a
 10 complete investigation every three (3) years to determine that the
 11 person is in compliance with this article. The costs of the
 12 investigation must be paid from the license renewal fee paid under
 13 IC 4-39.5-13.

14 (c) Notwithstanding subsection (b), the commission may
 15 investigate a person holding a manufacturer license, a distributor
 16 license, a supplier license, or an operator license at any time the
 17 commission determines that an investigation is necessary to ensure
 18 that the person remains in compliance with this article.

19 Sec. 12. (a) The commission may issue an establishment license
 20 to an applicant that satisfies the requirements of this article.

21 (b) An establishment license allows the licensee to conduct video
 22 gaming under a video gaming terminal installation contract at the
 23 street address specified in the licensee's application for the
 24 establishment license. A person must obtain a separate
 25 establishment license for each premises at which the person wishes
 26 to conduct video gaming under a video gaming terminal
 27 installation contract.

28 (c) An establishment license issued under this chapter is valid
 29 for one (1) year. An establishment may annually renew the license
 30 if:

31 (1) the commission determines that the establishment satisfies
 32 the conditions of this article; and

33 (2) the establishment pays the annual license renewal fee
 34 under IC 4-39.5-13.

35 Sec. 13. (a) To qualify for an establishment license, a person
 36 must operate:

37 (1) a fraternal organization establishment, as defined by
 38 IC 4-39.5-2-8;

39 (2) a veterans organization establishment, as defined by
 40 IC 4-39.5-2-21;

41 (3) except as provided in subsection (b)(5), an establishment
 42 licensed under IC 7.1-3 to sell alcoholic beverages to



customers for consumption on the premises of the establishment; or

(4) a truck stop establishment, as defined by IC 4-39.5-2-19.

(b) The following may not apply for an establishment license under this article:

(1) A person holding a horse track permit under IC 7.1-3-17.7.

(2) A licensed owner of a riverboat licensed under IC 4-33.

(3) An operating agent who operates a riverboat in a historic hotel district under IC 4-33-6.5.

(4) A person holding a gambling game license issued under IC 4-35-5.

(5) A person holding a permit issued under IC 7.1-3 for any of the following:

(A) A boat permit.

(B) A hotel permit.

(C) A resort hotel permit.

(D) An airport permit.

(E) A satellite facility permit.

(F) A microbrewery permit.

(G) A social club permit.

(H) A civic center permit.

(I) A catering hall permit.

(J) A dining car permit.

(K) A temporary event permit.

(L) A permit for any of the following facilities:

(i) A stadium.

(ii) An automobile race track.

(iii) A concert hall.

(6) A person (other than a truck stop establishment) operating a convenience store.

Sec. 14. If the commission proposes to revoke a license issued under this chapter, the licensee may continue to operate under the license until the commission has made a decision and all administrative appeals have been exhausted by the licensee.

Chapter 6. Restrictions on Licensees and Other Persons

Sec. 1. A person holding a manufacturer license or a person holding an interest in a person holding a manufacturer license may not:

(1) hold an operator license;

(2) hold an establishment license; or

(3) own an equity interest in a person holding an operator license or establishment license.



1 **Sec. 2. A person holding a distributor license or a person**
 2 **holding an interest in a person holding a distributor license may**
 3 **not:**

- 4 (1) hold an operator license;
 5 (2) hold an establishment license; or
 6 (3) own an equity interest in a person holding an operator
 7 license or establishment license.

8 **Sec. 3. A person holding a supplier license or a person holding**
 9 **an interest in a person holding a supplier license may not:**

- 10 (1) hold an establishment license; or
 11 (2) own an equity interest in a person holding an
 12 establishment license.

13 **Sec. 4. A person holding an operator license or a person holding**
 14 **an interest in a person holding an operator license may not:**

- 15 (1) hold a manufacturer license;
 16 (2) hold a distributor license;
 17 (3) hold an establishment license; or
 18 (4) own an equity interest in a person holding a manufacturer
 19 license, a distributor license, or an establishment license.

20 **Sec. 5. A person holding an establishment license or an owner or**
 21 **a manager of a person holding an establishment license may not:**

- 22 (1) hold a manufacturer license;
 23 (2) hold a distributor license;
 24 (3) hold a supplier license;
 25 (4) hold an operator license; or
 26 (5) own an equity interest in a person holding a manufacturer
 27 license, a distributor license, a supplier license, or an operator
 28 license.

29 **Sec. 6. Notwithstanding sections 1 through 5 of this chapter, a**
 30 **licensee may hold an otherwise prohibited equity interest of not**
 31 **more than five percent (5%) in another person holding a license**
 32 **under this article if the other person is registered with the**
 33 **Securities and Exchange Commission.**

34 **Sec. 7. A person may not assemble, sell, lease, or contract to sell**
 35 **or lease a video gaming terminal to a distributor unless the person**
 36 **holds a valid manufacturer license.**

37 **Sec. 8. A person may not sell, lease, or contract to sell or lease**
 38 **a video gaming terminal to an operator unless the person holds a**
 39 **valid distributor license.**

40 **Sec. 9. A person may not place, install, or manage the operations**
 41 **of a video gaming terminal or the major components or parts of a**
 42 **video gaming terminal in an establishment unless the person holds**



1 a valid operator license. A person may not own or lease a video
 2 gaming terminal or major components or parts of a video gaming
 3 terminal unless the person holds a valid operator license.

4 Sec. 10. A person may not service, maintain, repair, possess,
 5 control, or have access to a video gaming terminal or major
 6 components or parts of a video gaming terminal unless the person
 7 holds a valid operator license under this article.

8 Sec. 11. (a) A manufacturer may not:

9 (1) be licensed as an operator; or

10 (2) own, control, or manage an establishment.

11 (b) A distributor may not:

12 (1) be licensed as an operator; or

13 (2) own, control, or manage an establishment.

14 (c) An operator may not:

15 (1) be licensed as a manufacturer or distributor; or

16 (2) own, control, or manage an establishment.

17 (d) An operator may contract only with other licensees under
 18 this article.

19 Sec. 12. (a) An operator may not give anything of value,
 20 including a loan or a financing arrangement, to any establishment
 21 as an incentive or inducement to locate video gaming terminals in
 22 that establishment.

23 (b) An establishment may not accept anything of value,
 24 including a loan or a financing arrangement, from any person as
 25 an incentive or inducement to locate video gaming terminals in that
 26 establishment.

27 Chapter 7. Video Gaming Terminal Standards

28 Sec. 1. A licensee may not install a video gaming terminal in a
 29 licensed establishment under a video gaming terminal installation
 30 contract unless the video gaming terminal has been approved by
 31 the commission.

32 Sec. 2. The commission may use the services of an independent
 33 testing laboratory to test video gaming terminals for compliance
 34 with this chapter.

35 Sec. 3. A video gaming terminal must do the following to satisfy
 36 the requirements for approval under this chapter:

37 (1) Conform to all requirements of federal law, including
 38 Class A Emissions Standards imposed under 47 CFR 15.

39 (2) Pay out a mathematically demonstrable percentage during
 40 the service life of the terminal of at least eighty percent
 41 (80%), but not more than ninety-five percent (95%).

42 (3) Use a random selection process to determine the outcome



of each play of a game.

(4) Use a random selection process that meets ninety-nine percent (99%) confidence limits using a standard chi-square test for goodness of fit.

(5) Display an accurate representation of the game outcome.

(6) Be capable of detecting and displaying the following conditions during an idle state or on demand:

(A) Power reset.

(B) Door open.

(C) Door just closed.

(7) Be capable of displaying complete play history, including outcome, intermediate play steps, credits available, bets placed, credits paid, and credits cashed out, for the eleven (11) games most recently played on the terminal.

(8) Allow for the replacement of parts or modules required for normal maintenance without requiring the replacement of the electromechanical meters.

(9) House in a locked area of the terminal meters that:

(A) are incapable of being reset; and

(B) keep a permanent record of the value of any electronic card inserted into the terminal, all winnings made by the terminal printer, credits played, and credits won by video gaming players.

(10) Allow on demand display of the information recorded in compliance with subdivision (9)(B).

(11) Use accounting software that keeps an electronic record of at least the following information:

(A) The total value of all electronic cards inserted into the terminal.

(B) The value of winning tickets claimed by players.

(C) The total credits played.

(D) The total credits awarded by the terminal.

(E) The payback percentage credited to the players of each game.

(12) Link to a central communications system to provide auditing program information required by the commission.

Sec. 4. The commission may not approve a video gaming terminal:

(1) on which an automatic alteration of pay tables or any function of the video gaming terminal through an internal computation of hold percentage is possible;

(2) that is subject to any means of manipulation that affects



the random selection process or the probabilities of winning a game; or

(3) that may be adversely affected by a static discharge or other electromagnetic interference.

Sec. 5. The theoretical payback percentage of a video gaming terminal may not be altered except by changing the hardware or software of the video gaming terminal on site or through the central communications system required by IC 4-39.5-9-5.

Sec. 6. The operator shall retain any electronically stored meter information recorded in accordance with this chapter for at least one hundred eighty (180) days after a loss of electric power to a video gaming terminal in service at a licensed establishment.

Chapter 8. Video Gaming Terminal Installation Contract

Sec. 1. A video gaming terminal installation contract must include the following terms and conditions:

(1) An affirmative statement that no inducement was offered by the operator, the agent of the operator, or any other person regarding the placement and operation of video gaming terminals on the premises of the establishment.

(2) A provision prohibiting the operator from assigning the contract to an unlicensed entity.

(3) A provision releasing the establishment from all contractual obligations to the operator if the operator surrenders its license, the license of the operator is revoked, or the commission declines to renew the license of the operator.

(4) A provision that indemnifies and holds harmless the state, the commission, and any agent of the commission with respect to a cause of action arising from the contract.

(5) A statement that the operator's obligation to place video gaming terminals and the establishment's obligation to allow the placement of video gaming terminals are both conditioned upon the parties obtaining the necessary licenses to conduct video gaming under this article.

Sec. 2. A video gaming terminal installation contract entered into under this article must require the adjusted gross receipts derived from video gaming to be allocated as follows:

(1) Thirty percent (30%) to the state in the form of taxes remitted under IC 4-39.5-12.

(2) Thirty-five percent (35%) to the operator.

(3) Thirty-five percent (35%) to the establishment.

Chapter 9. Conduct of Video Gaming



1 **Sec. 1. (a) In the case of an establishment licensed for the**
 2 **consumption of alcoholic beverages on the premises of the**
 3 **establishment, a video gaming terminal may be played only during**
 4 **the period beginning one (1) hour before the lawful consumption**
 5 **of alcoholic beverages begins in the establishment and ending one**
 6 **(1) hour after the lawful consumption of alcoholic beverages ends**
 7 **in the establishment.**

8 **(b) An establishment that violates this section is subject to:**

9 **(1) the suspension, termination, or revocation of the**
 10 **establishment's license; or**

11 **(2) other disciplinary action as determined by the commission.**

12 **Sec. 2. An operator must own or lease each video gaming**
 13 **terminal installed under this article. An operator is responsible for**
 14 **maintaining each video gaming terminal owned or leased by the**
 15 **operator. An operator shall ensure that each video gaming**
 16 **terminal owned or leased by the operator is in compliance with this**
 17 **article and the requirements of the commission.**

18 **Sec. 3. (a) An operator must maintain liability insurance on any**
 19 **video gaming terminal or equipment placed or installed in an**
 20 **establishment by the operator.**

21 **(b) An establishment must maintain liability insurance on any**
 22 **video gaming terminal or equipment placed or installed in the**
 23 **establishment under a video gaming terminal installation contract**
 24 **under IC 4-39.5-8.**

25 **(c) The commission shall determine the minimum amount of**
 26 **insurance required by this section.**

27 **Sec. 4. An establishment shall conspicuously display the**
 28 **following information on a poster or placard in the public area of**
 29 **the establishment in which video gaming is conducted:**

30 **(1) The telephone number of the toll free telephone line**
 31 **described in IC 4-33-12-9(c).**

32 **(2) That the area is restricted to individuals who are at least**
 33 **twenty-one (21) years of age.**

34 **(3) The telephone number of the operator.**

35 **Sec. 5. (a) An operator must ensure that each video gaming**
 36 **terminal in Indiana is linked to a central communications system.**

37 **(b) The central communications system required by this section**
 38 **must:**

39 **(1) have a game to system communication protocol;**

40 **(2) use a standard industry protocol approved by the**
 41 **commission; and**

42 **(3) allow the commission or the operator to activate or**



1 deactivate a particular video gaming terminal from a remote
2 location.

3 Sec. 6. An operator is liable for the video gaming wagering tax
4 imposed under IC 4-39.5-12.

5 Sec. 7. An operator shall display the odds of winning each game
6 on or near each video gaming terminal, including the manner in
7 which the odds are calculated.

8 Sec. 8. Each video gaming terminal in an establishment must be
9 installed in an area separated from the public spaces of the
10 establishment in which a minor may be present. The entrance to
11 the area must be within the view at all times of at least one (1)
12 employee who is at least twenty-one (21) years of age. An
13 establishment may comply with this section by erecting a physical
14 barrier to the video gaming area, including a partition, gate, or
15 rope that is secured to the floor or walls.

16 Sec. 9. A maximum of five (5) video gaming terminals may be
17 installed in a particular licensed establishment.

18 Sec. 10. The cost of a credit must be one (1) of the following
19 amounts:

- 20 (1) One cent (\$0.01).
- 21 (2) Five cents (\$0.05).
- 22 (3) Ten cents (\$0.10).
- 23 (4) Twenty-five cents (\$0.25).

24 Sec. 11. The maximum amount that a patron may wager on a
25 particular game on any individual hand on a video gaming
26 terminal is two dollars (\$2).

27 Sec. 12. The maximum amount that a patron may win on any
28 individual hand on a video gaming terminal is five hundred
29 ninety-nine dollars (\$599).

30 Sec. 13. A video gaming terminal may not directly dispense cash,
31 coins, or any article of exchange or value other than a payment
32 ticket.

33 Sec. 14. A patron must be able to obtain a payment ticket at the
34 end of the patron's play by pressing a ticket dispensing button on
35 the video gaming terminal.

36 Sec. 15. A payment ticket must include the following
37 information:

- 38 (1) The total amount of credits and the amount of the cash
39 award, if any, won by the patron.
- 40 (2) The date and time that the payment ticket is dispensed.
- 41 (3) The serial number of the video gaming terminal.
- 42 (4) The sequential number of the payment ticket.



(5) An encrypted validation number from which the validity of the cash award, if any, may be determined.

(6) The one (1) year expiration date of the payment ticket.

Sec. 16. A patron may collect any cash award won on a video gaming terminal by submitting the payment ticket into a payout device located in the establishment.

Sec. 17. The following persons may not wager on a video gaming terminal:

(1) An employee of the commission.

(2) A person less than twenty-one (21) years of age.

Sec. 18. (a) Except as provided in subsection (c), video gaming may not be conducted at an establishment located within one hundred (100) feet of a school or place of worship.

(b) Except as provided in subsection (c), video gaming may not be conducted at an establishment located within one thousand (1,000) feet of a riverboat regulated under IC 4-33 or a gambling game facility regulated under IC 4-35.

(c) The prohibitions on video gaming near facilities described in subsections (a) and (b) do not apply if a facility described in subsection (a) or (b) is opened within the minimum distance of an establishment after video gaming has commenced at the establishment.

Chapter 10. Crimes and Penalties

Sec. 1. A person who knowingly or intentionally:

(1) makes a false statement on an application submitted under this article;

(2) conducts video gaming in a manner other than the manner required by this article; or

(3) permits a person less than twenty-one (21) years of age to make a wager on a video gaming terminal;

commits a Class A misdemeanor.

Sec. 2. A licensee who knowingly or intentionally violates IC 4-39.5-6-12 commits a Level 6 felony.

Sec. 3. The commission may impose a civil penalty of not more than five thousand dollars (\$5,000) upon a licensee that permits a person barred from wagering under IC 4-39.5-9-17 to place a wager on a video gaming terminal.

Chapter 11. Judicial Review

Sec. 1. Except as provided in this article, IC 4-21.5 applies to actions of the commission.

Sec. 2. An appeal of a final rule or order of the commission issued under this article may be commenced under IC 4-21.5 in the



1 circuit court of the county containing an affected licensed
2 establishment.

3 Sec. 3. (a) The commission may require a licensee to suspend
4 video gaming operations without notice or hearing if the
5 commission determines that the safety or health of patrons or
6 employees would be threatened by the continued operation of video
7 gaming in the licensed establishment.

8 (b) The suspension of video gaming operations under this
9 section may remain in effect until the commission determines that
10 the cause for suspension has been abated. The commission may
11 revoke a license issued under this article if the commission
12 determines that the licensee has not made satisfactory progress
13 toward abating the hazard.

14 Chapter 12. Video Gaming Wagering Tax

15 Sec. 1. A tax is imposed on the adjusted gross receipts from
16 video gaming authorized under this article at the rate of thirty
17 percent (30%). Each operator owning or leasing a video gaming
18 terminal on which video gaming is conducted is liable for the tax
19 imposed by this section.

20 Sec. 2. An operator shall remit an amount equal to the thirty
21 percent (30%) tax imposed by section 1 of this chapter to the
22 department before the fifteenth day of the calendar month
23 following the calendar month in which the adjusted gross receipts
24 are received by the operator. The operator shall divide the
25 remaining seventy percent (70%) of the adjusted gross receipts as
26 provided in IC 4-39.5-8-2(2) and IC 4-39.5-8-2(3).

27 Sec. 3. The operator shall submit the following information to
28 the department on a form prescribed by the department before the
29 fifteenth day of each month:

- 30 (1) The total amount of adjusted gross receipts received from
31 video gaming in the previous month.
- 32 (2) The total amount of gross receipts received from video
33 gaming in the previous month.
- 34 (3) The total amount of taxes remitted under section 2 of this
35 chapter.
- 36 (4) The information required by subdivisions (1) through (3)
37 for each licensed establishment conducting video gaming on
38 video gaming terminals owned or leased by the operator in
39 the previous month.
- 40 (5) The location of each establishment conducting video
41 gaming on video gaming terminals owned or leased by the
42 operator in the previous month, including whether the



1 establishment is located in an unincorporated area of a
2 county.

3 Sec. 4. The department shall require payment under this
4 chapter to be made by electronic funds transfer (as defined by
5 IC 4-8.1-2-7(f)).

6 Sec. 5. (a) Except as provided in subsection (b), the department
7 shall do the following with the tax revenue remitted to the
8 department each month under section 2 of this chapter:

9 (1) Set aside thirty-five percent (35%) of the tax revenue for
10 a quarterly allocation to the municipality where the licensed
11 establishment conducting video gaming on video gaming
12 terminals owned or leased by the operator that submitted the
13 taxes is located.

14 (2) Set aside thirty-five percent (35%) of the tax revenue for
15 a quarterly allocation to the county where the licensed
16 establishment conducting video gaming on video gaming
17 terminals owned or leased by the operator that submitted the
18 taxes is located.

19 (3) Deposit thirty percent (30%) of the tax revenue in the state
20 general fund.

21 (b) If tax revenue is collected from an operator that operates in
22 an unincorporated area of a county, the department shall do the
23 following with the tax revenue remitted to the department each
24 month under section 2 of this chapter:

25 (1) Set aside seventy percent (70%) of the tax revenue for a
26 quarterly allocation to the county where the licensed
27 establishment conducting video gaming on video gaming
28 terminals owned or leased by the operator that submitted the
29 taxes is located.

30 (2) Deposit thirty percent (30%) of the tax revenue in the state
31 general fund.

32 (c) A county may use the tax revenue received under this section
33 only for the following purposes:

- 34 (1) Mental health treatment for jail inmates.
- 35 (2) Addiction interventions for jail inmates.
- 36 (3) Contributions to the pension fund of the county's sheriff's
37 department.
- 38 (4) Training and equipment for the county's sheriff's
39 department.

40 (d) A municipality may use the tax revenue received under this
41 section only for the following purposes:

- 42 (1) Mental health treatment for jail inmates.



(2) Addiction interventions for jail inmates.

(3) Contributions to the 1977 police officers' and firefighters' pension and disability fund established by IC 36-8-8-4.

(4) Training and equipment for the police department of the municipality.

Chapter 13. License Fees

Sec. 1. The commission shall charge the following initial license fees:

(1) Twenty-five thousand dollars (\$25,000) for an initial manufacturer license, an initial distributor license, or an initial supplier license issued to a person residing or domiciled in Indiana.

(2) Thirty-five thousand dollars (\$35,000) for an initial manufacturer license, an initial distributor license, or an initial supplier license issued to a person residing or domiciled in a state other than Indiana or a country other than the United States.

(3) Fifteen thousand dollars (\$15,000) for an initial operator license issued to a person residing or domiciled in Indiana.

(4) Twenty-five thousand dollars (\$25,000) for an initial operator license issued to a person residing or domiciled in a state other than Indiana or a country other than the United States.

(5) Five hundred dollars (\$500) for an initial establishment license.

Sec. 2. (a) A person holding a distributor license, a manufacturer license, or a supplier license shall pay an annual license renewal fee of ten thousand dollars (\$10,000).

(b) A person holding an operator license shall pay an annual license renewal fee of five thousand dollars (\$5,000).

(c) The commission shall charge each person holding an establishment license the following annual license renewal fees:

(1) One hundred dollars (\$100) for a licensed establishment that had adjusted gross receipts of less than twenty-five thousand dollars (\$25,000) in the previous twelve (12) calendar months.

(2) Two hundred fifty dollars (\$250) for a licensed establishment that had adjusted gross receipts of at least twenty-five thousand dollars (\$25,000) but less than fifty thousand dollars (\$50,000) in the previous twelve (12) calendar months.

(3) Five hundred dollars (\$500) for a licensed establishment



1 that had adjusted gross receipts of at least fifty thousand
 2 dollars (\$50,000) but less than one hundred thousand dollars
 3 (\$100,000) in the previous twelve (12) calendar months.

4 (4) One thousand dollars (\$1,000) for a licensed establishment
 5 that had adjusted gross receipts of at least one hundred
 6 thousand dollars (\$100,000) in the previous twelve (12)
 7 calendar months.

8 **Sec. 3. A licensee shall pay the annual license renewal fee due**
 9 **under section 2 of this chapter on the first day of the calendar**
 10 **month containing the anniversary date of the issuance of the**
 11 **licensee's establishment license.**

12 **Sec. 4. The commission shall deposit the following into the state**
 13 **general fund:**

14 (1) All fees collected under this chapter.

15 (2) All application fees received under IC 4-39.5-5.

16 SECTION 4. IC 6-8.1-1-1, AS AMENDED BY P.L.1-2023,
 17 SECTION 19, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 18 JULY 1, 2026]: Sec. 1. "Listed taxes" or "taxes" includes only the
 19 pari-mutuel taxes (IC 4-31-9-3 through IC 4-31-9-5); the supplemental
 20 wagering tax (IC 4-33-12); the riverboat wagering tax (IC 4-33-13); the
 21 slot machine wagering tax (IC 4-35-8); the type II gambling game
 22 excise tax (IC 4-36-9); **the video gaming wagering tax (IC**
 23 **4-39.5-12);** the gross income tax (IC 6-2.1) (repealed); the utility
 24 receipts and utility services use taxes (IC 6-2.3) (repealed); the state
 25 gross retail and use taxes (IC 6-2.5); the adjusted gross income tax (IC
 26 6-3); the pass through entity tax (IC 6-3-2.1); the supplemental net
 27 income tax (IC 6-3-8) (repealed); the county adjusted gross income tax
 28 (IC 6-3.5-1.1) (repealed); the county option income tax (IC 6-3.5-6)
 29 (repealed); the county economic development income tax (IC 6-3.5-7)
 30 (repealed); the local income tax (IC 6-3.6); the auto rental excise tax
 31 (IC 6-6-9); the financial institutions tax (IC 6-5.5); the gasoline tax (IC
 32 6-6-1.1); the special fuel tax (IC 6-6-2.5); the motor carrier fuel tax (IC
 33 6-6-4.1); a motor fuel tax collected under a reciprocal agreement under
 34 IC 6-8.1-3; the vehicle excise tax (IC 6-6-5); the aviation fuel excise
 35 tax (IC 6-6-13); the commercial vehicle excise tax (IC 6-6-5.5); the
 36 excise tax imposed on recreational vehicles and truck campers (IC
 37 6-6-5.1); the hazardous waste disposal tax (IC 6-6-6.6) (repealed); the
 38 heavy equipment rental excise tax (IC 6-6-15); the vehicle sharing
 39 excise tax (IC 6-6-16); the cigarette tax (IC 6-7-1); the closed system
 40 cartridge tax (IC 6-7-2-7.5); the electronic cigarette tax (IC 6-7-4); the
 41 beer excise tax (IC 7.1-4-2); the liquor excise tax (IC 7.1-4-3); the wine
 42 excise tax (IC 7.1-4-4); the hard cider excise tax (IC 7.1-4-4.5); the



1 petroleum severance tax (IC 6-8-1); the various innkeeper's taxes (IC
 2 6-9); the various food and beverage taxes (IC 6-9); the county
 3 admissions tax (IC 6-9-13 and IC 6-9-28); the oil inspection fee (IC
 4 16-44-2); the penalties assessed for oversize vehicles (IC 9-20-3 and
 5 IC 9-20-18); the fees and penalties assessed for overweight vehicles (IC
 6 9-20-4 and IC 9-20-18); and any other tax or fee that the department is
 7 required to collect or administer.

8 SECTION 5. IC 35-45-5-15.5 IS ADDED TO THE INDIANA
 9 CODE AS A **NEW** SECTION TO READ AS FOLLOWS
 10 [EFFECTIVE JULY 1, 2026]: **Sec. 15.5. This chapter does not apply**
 11 **to video gaming authorized by IC 4-39.5.**

12 SECTION 6. IC 35-52-4-36 IS ADDED TO THE INDIANA CODE
 13 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
 14 1, 2026]: **Sec. 36. IC 4-39.5-10-1 defines a crime concerning video**
 15 **gaming.**

16 SECTION 7. IC 35-52-4-37 IS ADDED TO THE INDIANA CODE
 17 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
 18 1, 2026]: **Sec. 37. IC 4-39.5-10-2 defines a crime concerning video**
 19 **gaming.**

